

ASCII MASTER FLOW – PANEL 1/12: Federal test, formation and territory

FEDERAL TEST

- +-- Constitution protects Union and State authority in assigned spheres
- +-- both levels act directly on citizens; neither is an ordinary delegate
- +-- one sovereign constitutional order; no unilateral State secession

INDIAN FORMATION

- +-- Article 1: Union of States; holding-together, Union-weighted design
- +-- Article 3: presidential recommendation + State views, not State consent
- +-- Article 4: reorganisation law is not an Article 368 amendment

MUST REMEMBER: Test federalism through dual government, constitutional distribution, supremacy, rigidity, independent courts and bicameral representation, then map the Union tilt through Articles 3, 248-253, 256-257, 312, 352-356 and integrated constitutional institutions.

ASCII MASTER FLOW – PANEL 2/12: Federal features and Union bias

FEDERAL FEATURES

- +-- dual polity + written supreme Constitution + Seventh Schedule
- +-- selective rigidity + independent judiciary + Rajya Sabha

UNION BIAS

- +-- residuary power + State-field exceptions + emergencies
- +-- integrated services + single citizenship + greater fiscal capacity

VERDICT: constitutionally federal and Union-weighted, not unitary in spirit.

ASCII MASTER FLOW – PANEL 3/12: Legislative distribution and conflict

ARTICLES 245-246: territorial reach + three-List allocation

- +-- Union 100 | State 61 | Concurrent 52: standard exam counts
- +-- 246A: GST competence | 248 + Entry 97: parliamentary residuary power

CONFLICT METHOD

- +-- pith and substance -> true nature
- +-- harmonious construction -> reconcile overlap
- +-- Article 254 -> Concurrent conflict only; assent may save State law locally

ASCTI MASTER FLOW – PANEL 4/12: Parliament entering the State field

STATE-FIELD DOORS

- +-- 249: Rajya Sabha, two-thirds present/voting, national interest
- +-- 250: Article 352 Emergency; law survives six months after it ends
- +-- 252: two or more States request; Parliament controls amendment/repeal
- +-- 253: treaty implementation; still subject to the Constitution
- +-- 356-357: affected State during President's Rule; S.R. Bommai (1994) review

TRAP: no general Union power to legislate on List II.

ASCII MASTER FLOW – PANEL 5/12: Administrative relations

ARTICLES 256-257

- +-- secure compliance and prevent impedance of Union executive power
- +-- directions are text-bounded, not a general administrative takeover

RECIPROCAL DELEGATION

- +-- 258: Union functions -> State with consent
- +-- 258A: State functions -> Union with Union consent

261 full faith/credit | 262 water-dispute law | 263 Inter-State Council

FISCAL CONSTITUTION

- +-- 268/269/269A: levy, collection, assignment and IGST apportionment
- +-- 270: divisible pool | 275 and 282: distinct grant routes
- +-- 280-281: Finance Commission report | 293: conditional borrowing consent

16TH FINANCE COMMISSION

- +-- report submitted 17 Nov 2025 | award 2026-31
- +-- States: 41% vertical share; exact horizontal weights need official report

CLOSE DISTINCTION: Article 1's 'Union of States' rejects a secession compact but does not make India unitary. Federalism is basic structure; the Union may be stronger and States territorially alterable while each level retains constitutionally assigned fields.

ASCII MASTER FLOW – PANEL 7/12: Basic Structure and emergency control

CASE CHAIN

- +-- West Bengal (1962): no sovereign-State compact
- +-- Kesavananda Bharati (1973): limited amendment power
- +-- S.R. Bommai (1994): federalism Basic Structure; Article 356 review

DUTY != REMEDY

- +-- Article 355: protect States and ensure constitutional government
- +-- Articles 356-357: exceptional remedy + legislative consequence
- +-- disputed majority ordinarily belongs on the House floor
- +-- State of Rajasthan v. Union of India (1977): cautious pre-S.R. Bommai (1994) review

ASCII MASTER FLOW – PANEL 8/12: Working modes and shared-rule institutions

MODES COEXIST

- +-- cooperative: GST, transfers, disaster coordination
- +-- competitive: investment, innovation, outcome improvement
- +-- bargaining: parties, schemes, fiscal negotiation
- +-- confrontational: assent, CBI, water, tax and borrowing disputes

CHANNELS: Rajya Sabha + ISC + Zonal Councils + GST Council + FC + courts

HEALTH TEST: conflict becomes reasons, negotiation and adjudication.

- +-- Mohit Minerals (2022): GST Council advice is non-binding

2024 West Bengal ruling (2024 INSC 502): Article 131 suit survived preliminary objections; CBI-consent merits were not decided.

ASCTII MASTER FLOW – PANEL 9/12: Asymmetric federalism

ASYMMETRY = DIFFERENTIATED CONSTITUTIONAL ACCOMMODATION

- +-- Fifth Schedule: Scheduled Areas + Governor/TAC safeguards
- +-- Sixth Schedule: tribal areas in four States + autonomous councils
- +-- Article 371 family + differentiated Union-Territory arrangements
- +-- Article 239AA illustrates a distinct capital-territory design

LIMIT: common citizenship continues; asymmetry is not arbitrary inequality.

ASCII MASTER FLOW – PANEL 10/12: Representation and current controls

REPRESENTATION

- +-- Rajya Sabha gives unequal State representation; Lok Sabha tracks population
- +-- 131st Bill: negatived 17 Apr 2026, 298-230; proposed 850 is not law
- +-- Census conduct/reference dates != publication or delimitation dates

CURRENT FRICTION

- +-- Governor assent: no fixed timeline/deemed assent; prolonged silence reviewable
- +-- CBI: State consent rule; constitutional-court exception

ASCI MASTER FLOW – PANEL 11/12: Verified PYQs and Prelims traps

TEN ROUTES

- +-- 2020: modes + centralising laws | 2021: CBI + federal essence
- +-- 2022: party incentives | 2023: Article 356 + GST + prisons
- +-- 2024: Centre-State trust | 2025: fiscal federalism

TRAPS

- +-- Article 254 is Concurrent-specific | 262 exclusion needs parliamentary law
- +-- Article 355 is not automatic 356 | GST recommendations are non-binding
- +-- State competence is autonomous, not sovereign

ASCII MASTER FLOW – PANEL 12/12: Marks-scaled answer spine

10 MARKS: define -> one Article cluster -> one case -> qualified verdict

15 MARKS: add mechanisms -> named evidence -> counterpoint -> specific reform

20 MARKS: integrate asymmetry + representation + current control -> graded verdict

MASTER SPINE

definition -> allocation -> administration/finance -> operation -> evidence

-> limitation -> reform -> conclusion

VERDICT: Union capacity earns federal legitimacy through consultation and restraint.

LEGAL/SOURCE LIMIT: Current federal claims must distinguish enacted law, advisory judgments

and failed proposals: the 2025 Article 143 opinion controls assent, the 16th Finance

Commission retains 41 percent vertical devolution, and the defeated 131st Amendment Bill,

2026 never amended the Constitution.